

April 24, 2026, Civil Law & Motion Tentative Rulings

1. CU0001483 Susan Gabrielle vs. Phillip G. Conlon, Jr

Plaintiff Susan Gabrielle's motion to enforce settlement is granted. The Court sets a review hearing on May 22, 2026, at 10:00 a.m. in Department 6. The parties are ordered to file and serve a joint status report at least 10 court days prior to the hearing, updating the Court as to the status of the sale.

Plaintiff seeks enforcement of the parties' settlement agreement. There is good cause for the same.

Code of Civil Procedure section 664.6(a) provides "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."

At bar, Plaintiff submits a signed settlement agreement executed between the parties. Macias Decl., Exh. A. The agreement required Defendant to refinance the Subject Property within 75 days of June 30, 2025 such that Plaintiff's name is no longer on any mortgage documents for the Subject Property. Macias Decl., Exh. A, pg. 1, ¶ 1. The agreement also required the parties' counsel to update each other on the status and progress of the refinance. *Id.* The parties signed the agreement. To date the terms of the agreement have not been satisfied. Defendant does not oppose the motion, but asks the Court for additional time to comply with the settlement agreement.

Therefore, based on the record, the Court grants Plaintiff's motion to enforce settlement under Code of Civil Procedure section 664.6. Within 75 days of this order, Defendant shall refinance or sell the Subject Property so that Plaintiff's name is no longer on the mortgage and pay Plaintiff the monies owed. The Court sets a review hearing as noted. The court retains jurisdiction to enforce this order.

2. CU0002418 Andrew Ehlers v. Brandon Murray, et al.

Plaintiff Andrew J. Ehlers' motion for leave to file a first amended complaint is denied without prejudice.

The Court may, in its discretion and after notice to the adverse party, allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1). California Rules of Court, rule 3.1324(a) provides: "A motion to amend a pleading before trial must: [¶] (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; [¶] (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and [¶] (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." In addition, per California Rules of Court, rule 3.1324(b), a motion to file an amended pleading must be accompanied by a "separate declaration" specifying: "(1) The effect of the amendment;

[¶] (2) Why the amendment is necessary and proper; [¶] (3) When the facts giving rise to the amended allegations were discovered; and [¶] (4) The reasons why the request for amendment was not made earlier.” These rules apply to parties represented by legal counsel and self-represented parties. See *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1247.

Defendants argue Plaintiff fails to identify which allegations are being added or deleted. Defendant also argues Plaintiff’s declaration fails to state the effect of the amendment, why the amendment is necessary and proper, and when the facts giving rise to the amended allegations were discovered. The Court agrees.

At bar, Plaintiff failed to comply with requirements (2) and (3) under rule 3.1324(a) and all four requirements under rule 3.1324(b).

Plaintiff attempts to correct these deficiencies for the first time in his reply. This evidence and argument is untimely and there is not good cause shown why this is an exceptional case meriting its consideration. See, e.g., *Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362, n. 8 (“the inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case”); *Save the Sunset Strip Coalition v. City of West Hollywood* (2001) 87 Cal.App.4th 1172, 1182, n. 3 (“absent justification for failing to present an argument earlier, we will not consider an issue raised for the first time in a reply brief”).

The motion is denied without prejudice.

3. CU0002477 Blanche Sherr vs. Cascade Living Group

The Court continues Plaintiff Blanche Elaine Sherr’s motion for trial preference to May 22, 2026, at 10:00 a.m. in Department 6, to be heard at the same time as Defendant’s motion to compel arbitration and stay proceedings.

4. CU0002670 Jose A. Valdovinos vs. DD Investments, LLC, et al.

Plaintiff Jose A. Valdovinos’ motion for preliminary injunction is granted.

Legal Standard

“A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor.” Code Civ. Proc. § 527(a). “The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial.” *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1316. Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. See, e.g., *ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016; *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150. Injunctive relief may be granted based on a verified complaint, sworn declarations, affidavits, or any combination of the foregoing provided facts sufficient for relief are contained there. Code Civ. Proc. §§ 527(a), (h); 2009; 2015.5.